

have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

The court previously granted an opportunity for a hearing on the underlying motion to quash services of summons on this matter, moving party elected not to appear. No explanation has been provided why the alleged “new information” could not have been produced earlier.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2600463	VILLALOBOS BUELNA VS ESTATE OF STEPHANY REYES (DECEASED)	SPECIAL DEMURRER ON COMPLAINT OF ANGEL VILLALOBOS BUELNA AS TO CAUSE(S) OF ACTION BY MARRIOTT HOTEL SERVICES, LLC [ERRONEOUSLY SUED AS MARRIOTT INTERNATIONAL, INC.]

Tentative Ruling: Sustained.

Plaintiff granted leave to file 1st Amended Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

On January 8, 2025, decedent Stephany Reyes (“Reyes”) consumed an excessive quantity of alcohol at the JW Marriott Desert Springs Resort and Spa hotel bar on Country Club Drive in Palm Desert. Defendant Marriott Hotel Services (“Marriott”) is alleged to have owned, operated, managed, or controlled the bar. Reyes became severely intoxicated, exhibiting slurred speech, imbalance, confusion, and loss of motor coordination; bartenders continued serving her in rapid succession and no manager or supervisor intervened. Marriott employees, including valet or other on-site personnel, then affirmatively assisted her to her vehicle, opening the door, helping her inside, and permitting her to drive off. Reyes drove the wrong way on Country Club Drive at high speed and struck Plaintiffs’ Angel Villalobos Buelna and Jeremy Loredó (“Plaintiffs”) vehicle head-on, causing them catastrophic injuries.

On January 6, 2026, Plaintiffs filed their complaint alleging five (5) causes of action: 1) Negligence (Motor Vehicle) (against Estate of Reyes only); 2) Negligent Entrustment (against Does 1-100); 3) General Negligence; 4) Negligent Hiring, Supervision, and Retention; and 5) Voluntary Undertaking.

Marriott now demurs to the Third (General Negligence), Fourth (Negligent Hiring, Supervision & Retention), and Fifth (Voluntary Undertaking) causes of action under Code of Civil Procedure § 430.10(e) on the grounds each fails to state sufficient facts to constitute a claim.

Plaintiffs oppose and argue the demurrer rests on an “overbroad reading” of dram shop immunity and argue the Complaint pleads affirmative post-service misconduct, not mere furnishing. The dram immunity is narrowly tailored. The duty arises from Marriott’s own affirmative conduct that created/increased foreseeable risk. Marriott knew or should have known its bartenders had a propensity to overserve, and failed to train, supervise, or discipline. They also argue the negligent undertaking is specific: escorting, assisting into the vehicle, and permitting operation, which is reinforced by Marriott’s own policies requiring employees to stop serving intoxicated guests and to discourage driving. They argue if any deficiency is found, leave should be granted. They identify six separate categories of facts including employee-conduct details, written policies/trainings, training/supervision failures, prior overservice knowledge, ratification, and post-collision concealment.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.)

A pleading may also be challenged as uncertain where it is “ambiguous and unintelligible.” (C.C.P., § 430.10(f).) Uncertainty demurrers are disfavored and strictly construed, and they lie only where the pleading is so incomprehensible that the defendant cannot determine what issues must be admitted or denied. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

3rd Cause of Action - Negligence

Defendant demurs to the Third Cause of Action on the ground that it is barred by California’s dram-shop immunity statutes and does not allege facts sufficient to state a claim for post-service affirmative negligence independent of alcohol furnishing.

Business and Professions Code section 25602, subdivision (b), immunizes the furnishing of alcohol to an obviously intoxicated person from civil liability for resulting injuries. (Bus. & Prof. Code, § 25602, subd. (b).) Civil Code section 1714, subdivision (b), specifically allocates proximate cause by declaring that the furnishing of alcohol is not the proximate cause of injuries resulting from intoxication, and that consumption is the proximate cause. (Civ. Code, § 1714, subd. (b).) The immunity’s reach turns on the gravamen of the claim, not the pleader’s label. (*People v. Lopez* (1963) 60 Cal.2d 223, 238.) A plaintiff cannot avoid the statute by redescribing

the wrong as a post-service act if that act is causally inseparable from the intoxication produced by the alcohol service. (*Id.*)

The Third Cause of Action as currently pleaded does not adequately allege a theory of negligence independent of alcohol service. Plaintiffs allege that Marriott bartenders continued serving Reyes despite her severe intoxication and that Marriott employees escorted her through the premises, opened the vehicle door, helped her inside, and permitted her to operate the vehicle. (Compl. ¶¶ 9, 88.) While these allegations describe affirmative post-service acts, the conduct alleged remains causally dependent on Reyes's intoxication from Marriott's alcohol service. Escorting Reyes to the vehicle, opening the door, and helping her into the seat would not endanger Plaintiffs in any ordinary sense if Reyes were sober; those acts become dangerous only because she was intoxicated. This is precisely the kind of causal dependence that statutory immunity covers. (*DeBolt v. Kragen Auto Supply, Inc.* (1986) 182 Cal.App.3d 269.)

The present pleading sits closer to escort-and-release than to defendant-created peril. Under controlling authority, escorting an intoxicated patron to a car and allowing departure is treated as nonintervention rather than an undertaking that creates a new danger. (*Garden Grove Community Church v. Pittsburgh-Des Moines Steel Co.* (1983) 140 Cal.App.3d 251, 265.) The allegation that Marriott employees "knowingly permitted" Reyes to operate the vehicle does not materially change that analysis as currently pleaded. (Compl. ¶ 9.) The complaint does not presently allege specific facts showing Marriott had possession of the keys, control of the vehicle, an express undertaking to withhold access, or some other concrete act crossing the line from nonintervention into risk creation. SUSTAINED

4TH Cause of Action - Negligent Hiring, Supervision & Retention

Defendant demurs to the Fourth Cause of Action on the ground that it is barred to the extent its gravamen is alcohol furnishing and, independently, that it fails to allege ultimate facts showing Marriott's pre-incident knowledge of employee unfitness.

A negligent hiring, supervision, and retention claim against a licensed alcohol furnisher is not categorically nonviable, but it is legally barred to the extent its gravamen is the furnishing or overservice of alcohol to an adult patron. (*DeBolt, supra*, 182 Cal.App.3d 238.) The current complaint alleges both overservice and post-service assistance. To the extent the Fourth Cause of Action rests on Marriott's supervision of bartenders who overserved Reyes, the claim is barred by dram-shop immunity. (*Fiorini v. Gould* (2002) 105 Cal.App.4th 1359, 1365.)

Even assuming a narrow independent-theory lane exists for post-service assistance to the vehicle, the complaint does not adequately plead the Fourth Cause of Action. A plaintiff must allege facts showing the employer knew or should have known of the employee's dangerous propensities and that the particular harm was foreseeable. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861.) A bare assertion that employees had a "history" or "propensity" to engage in harmful conduct, without supporting facts such as prior incidents, complaints, or other concrete notice, is insufficient at the pleading stage. (*Id.* at 875.)

The complaint alleges Marriott knew its bartenders had a "history and/or propensity to overserve patrons" and had actual knowledge of repeated overservice, prior knowledge of hazardous alcohol service practices, and willfully ignored prior complaints or patterns of misconduct. (Compl. ¶¶ 11, 46, 66.) However, none of these allegations identifies a prior incident, date, complaint, discipline record, named employee, customer report, or other concrete circumstance from which Marriott's actual or constructive notice can be inferred. The allegations are labels and conclusions, not pleaded ultimate facts. (*C.A., supra*, 53 Cal.4th at p. 875; *Feltham v. Solano County* (2004) 119 Cal.App.4th 857, 863-864.) SUSTAINED

5TH Cause of Action – Voluntary Undertaking

Under Restatement Second of Torts section 324A as adopted in California, one who undertakes to render services to another may owe a duty to third persons if the actor's failure to exercise reasonable care increased the risk of harm, or the actor undertook to perform a duty owed by another, or harm occurred because of reliance. (*Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal.App.5th 70.) The defendant must specifically have undertaken to perform the very task alleged to have been performed negligently; without actual assumption of that specific task, no correlative duty arises. (*Id.*)

As presently pleaded, the Fifth Cause of Action sits very close to the dram-shop immunity line. Plaintiffs allege Reyes became severely intoxicated after being overserved at Marriott's bar, that Marriott employees observed that condition, and that they then assisted her to her vehicle, opened the door, helped her inside, and knowingly permitted her to drive while impaired. (Compl. ¶¶ 7, 9, 88.) These allegations describe affirmative post-service acts, but the asserted duty still depends on Reyes's impairment as the consequence of the alcohol Marriott allegedly furnished. In that sense, the pleaded theory resembles an asserted duty to supervise, control, or prevent departure by an intoxicated patron, which the immunity statutes bar. (*DeBolt, supra*, 182 Cal.App.3d at 269; *Biles v. Richter* (1988) 206 Cal.App.3d 325.)

The complaint also fails to allege the undertaking with the required specificity. Paragraph 88 alleges Marriott employees "voluntarily undertook to render assistance and exercise control over the circumstances surrounding Reyes" after she became impaired. (Compl. ¶ 88.) That is largely conclusory. The underlying facts pleaded are that employees escorted her through the premises, assisted her to the vehicle, opened the door, helped her inside, and permitted her to operate the vehicle. (*Id.* ¶¶ 9, 88.) The task Plaintiffs say Marriott performed negligently is preventing Reyes from driving while intoxicated and protecting the public from that danger. But the task Marriott is actually alleged to have undertaken in factual terms is assistance with Reyes's departure. Under controlling authority, the defendant must have specifically undertaken the very task alleged to have been negligently performed. (*Barenborg, supra*, 33 Cal.App.5th at 63.) Helping an intoxicated patron reach and enter a vehicle does not, without more, plead an undertaking to prevent her from driving that vehicle.

The current allegations do not adequately show affirmative worsening beyond a preexisting risk under Restatement section 324A, subdivision (a). Reyes was already severely intoxicated before the alleged assistance to the car. (Compl. ¶ 7.) The pleaded acts of escorting her, opening the car door, and helping her inside can be read as facilitating departure, but they can also be read as completing an ordinary escort or valet-type interaction. The complaint does not plead facts showing Marriott's intervention placed Reyes or the public in a worse position than if Marriott had done nothing, as opposed to merely failing to stop a risk that already existed. Under Restatement section 324A, subdivision (a), failure to eliminate a preexisting danger is not enough. (*Paz v. State of California* (2000) 22 Cal.4th 550, 559.)

The policy and training allegations do not cure the defect. Plaintiffs argue that Marriott's policies and trainings to stop service and discourage impaired driving show an assumed duty. However, internal policies do not themselves create a duty to third parties. (*T.L. v. City Ambulance of Eureka, Inc.* (2022) 83 Cal.App.5th 864.) Paragraph 10 alleges Marriott failed to train employees and provided no protocols for preventing intoxicated guests from operating vehicles. (Compl. ¶ 10.) Elsewhere, the complaint alleges failure to enforce existing policies. (*Id.* ¶ 44.) This internal contradiction underscores the deficiency: if Marriott lacked functioning policies and protocols, those nonexistent policies cannot simultaneously supply the specific undertaking Plaintiffs say Marriott assumed. SUSTAINED.